

25STCV34385 25STCV34385

County: los-angeles

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Department: 529

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Case Number: 25STCV34385 Hearing Date: September 8, 2026 Dept: 529

DR. JIONEL E. PIERRE, JD, LL.M, PH.D VS

JANA KANNER, ET AL.

demurrer to

the complaint

Date of Hearing: September

8, 2026 Trial Date: None

set.

Department: 529 Case

No.: 25STCV34385

Moving Party: Defendant

Jana Kanner, Executor of the Estate of Maura Dominguez Lovato and Executor of the Estate of Bonny Rivas

Responding Party: Plaintiff

Dr. Jionel E. Pierre, JD, LL.M, Ph.D

Meet and Confer: Attempted.

(Hopstoen Decl.)

BACKGROUND

On

November 25, 2025, Plaintiff Dr. Jionel E. Pierre, JD, LL.M, Ph.D filed a complaint against Defendant Jana Kanner, Executor of the Estate of Maura

Dominguez Lovato and Executor of the Estate of Bonny Rivas for breach of contract. Plaintiff alleges

[Tentative] Ruling

Defendant Jana Kanner, Executor of the Estate of Maura Dominguez Lovato and Executor of the Estate of Bonny Rivas's Demurrer to the Complaint is SUSTAINED; Defendant Jana Kanner, Executor of the Estate of Maura Dominguez Lovato and Executor of the Estate of Bonny Rivas's Motion to Strike is GRANTED.

REQUEST FOR JUDICIAL NOTICE

Defendant Jana Kanner, Executor of the Estate of Maura Dominguez Lovato and Executor of the Estate of Bonny Rivas requests this court take judicial notice of the certain documents filed in separate lawsuits, that involve the same parties and arise from the same claims as the instant case (LASC Case No. 17STPB06471 and Case No. 24STPB08265) (RJN, Exhs. 1 – 6.)

The court GRANTS the request for judicial notice as to the existence of these documents.

DISCUSSION

Defendant Jana Kanner, Executor of the Estate of Maura Dominguez Lovato and Executor of the Estate of Bonny Rivas demurs to the complaint of Plaintiff Jionel E. Pierre on the grounds Plaintiff's primary cause of action for breach of written contract and its derivative claims fail as a matter of law because the claim is time barred on its face and fails to state facts sufficient to constitute a valid cause of action.

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it

lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (*Semole v. Sansoucie* (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (*S. Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732 (internal citations omitted).)

Breach of Contract

Defendant first demurs to the complaint on the grounds the complaint fails to state facts sufficient to constitute a valid cause of action.

Code of Civil Procedure section

366.2(a) provides a special one-year window to file a lawsuit after a defendant dies before the normal statute of limitations expires, if the underlying cause of action survives.

Defendant argues Bonny Rivas, daughter of decedent Maura Dominguez Lovato, died in February 2021, thus any action against her, whether arising in contract, tort, or otherwise, was required to be filed no later than February 2022. Plaintiff’s Complaint filed in November 2025 is far too late to be enforceable. Next, Defendant argues the complaint is also barred for failure to file a timely creditor’s claim as “[a]n action may not be commenced against a decedent’s personal representative on a cause of action against the decedent unless a claim is first filed as provided in this part and the claim is rejected in whole or in part.” (Prob. Code § 9351.)

In opposition^[1],

Plaintiff argues the action is against Mr. Kanner, who is alive and accordingly, the action is not barred. Plaintiff contends the claim is tied to the Estate’s final accounting.

The court finds the one-year statute of limitations does not apply here. Bonny Rivas entered the agreement before she died in February of 2019. However, the debt was not due until April 2019 – after Rivas died. As a result, no breach or wrongdoing occurred before the

death. As noted in “the breach or misconduct must occur prior to the decedent's death, but the claim does not have to be discovered while the decedent is alive.” (Dacey v. Taraday (2011)196 Cal.App.4th 962, 983.)

However, the court finds Probate Code section 9351 does apply here. “When a party has a claim based on a contract with the decedent—no matter whether the obligation has come due or the breach has occurred—Probate Code section 9000 et seq. will operate to ensure that stale creditors' claims will not be presented years later.” (Dacey v. Taraday (2011) 196 Cal.App.4th 962, 986.) Here, the complaint does not allege compliance with the mandatory prerequisites for commencing this action.

Separately, Defendant argues the complaint is procedurally barred by the doctrine of exclusive concurrent jurisdiction. Defendant maintains the Complaint alleges breach of a Settlement Agreement reached in the probate action upon Lovato's Estate which by Plaintiff's own admission “remains open and active.” (Compl. ¶ 27, RJN Ex. 5,6.) The Settlement Agreement, an incomplete copy of which is attached as Exhibit B to the Complaint, states “The Parties hereby expressly stipulated that the Court where the Action is pending shall retain jurisdiction to enforce the terms and conditions of this Agreement pursuant to Code of Civil Procedure section 664.6 upon noticed motion of any party, or ex parte application, even in the event the Action is dismissed.”

In opposition, Plaintiff argues Defendant has not established that the probate proceeding and this action involves identical parties, identical causes of action, or identical relief.

The court agrees Probate Court retains jurisdiction. Even with the 664.6 retention clause, the court finds the Probate Court has continuing jurisdiction over estate administration and creditor claims. As noted above, Probate Code section 9351 would still require filing a creditor's claim before pursuing enforcement against the personal representative.

Based on the foregoing, the demurrer to the breach of contract cause of action is SUSTAINED WITH LEAVE TO AMEND. However, the court further finds that this case should be stayed in its entirety while the Probate action is still pending.

Unjust Enrichment

Lastly, Defendant argues the unjust enrichment claim is not a substantive cause of action. The court agrees. Unjust enrichment is not a standalone cause of action, and as presently pleaded, the cause of action states only the formulaic restatement of the same contractual obligation already fully defined in the attached settlement agreement.

Based on the foregoing, the demurrer to the unjust enrichment cause of action is SUSTAINED WITH LEAVE TO AMEND. In light of the stay, however, such amendment need not be filed until 30 days after the stay is lifted.

Motion to Strike

Defendant moves to strike Plaintiff's allegations for punitive damages on the grounds Plaintiff's punitive damages allegations are improper, unsupported, and not drawn in conformity with California law as punitive damages are not recoverable for breach of contract and the complaint fails to allege facts sufficient to support an award of punitive damages against Defendant under Civil Code section 3294.

Code of Civil Procedure section 436 provides that the Court may, upon a motion made pursuant to Code of Civil Procedure section 435, or at any time within its discretion and upon terms it deems proper, "strike out any irrelevant, false, or improper matter inserted in any pleading" and/or "strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (CCP § 436(a).) In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike, all parts in their context, and assume their truth. (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)

Defendant argues punitive damages are not allowed for intentional breaches of contract. The court agrees. "Punitive damages are not recoverable in breach of contract actions." (Purcell v. Schweitzer (2014) 224 Cal.App.4th 969, 976.)

Based on the foregoing, the motion to

strike is GRANTED WITHOUT LEAVE TO AMEND.

[1] The court

notes the opposition papers are untimely. It is within the court's discretion to consider the late filed papers (See CRC Rule 3.1300(d).) However, Plaintiff is cautioned that in the future the court may refuse to consider pleadings not filed in conformity with the statutes, rules and/or procedures of this court.